

Court No. - 40

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

Put up this case on 08.12.2022 as fresh in the top ten cases.

Order Date :- 30.11.2022

vkj

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And
Research Centre Acting Through Its Manager
Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar
Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Rajendra Kumar-IV, J.

Learned Counsel for the respondent nos.2 and 3 prays for and is granted three days time to obtain instructions and he shall specifically obtain instruction whether Tribunal is functional in Moradabad so as to enable the petitioner to avail statutory remedy.

Put up, as fresh case on 13.12.2022.

Order Date :- 8.12.2022

I.A.Siddiqui

Court No. - 21

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Jayant Banerji, J.

As prayed by counsel for the petitioner, list as fresh on 16.12.2022.

Order Date :- 13.12.2022

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(Jayant Banerji, J) (Manoj Kumar Gupta, J)

Court No. - 40

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research
Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan
Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

Put up this case as fresh on 23.12.2022 in the top ten cases.

Order Date :- 16.12.2022

vkj

Court No. - 40

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Siddhartha Varma, J.

Hon'ble Vipin Chandra Dixit, J.

The petitioner states that he is not approaching the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005 as it was not manned by any judicial officer. All the judicial members had been removed and now it is being run by the Executive Engineer as a Chairman.

The impugned order dated 7.10.2022 has been passed by the Executive Engineer and learned counsel submits that the officer of an equal rank could not be expected to set it aside.

Sri Pranjal Mehrotra, learned counsel appearing for respondent nos. 2 & 3-Electricity department may look into this aspect of the matter and submit a further report.

Put up this case as fresh on 6.1.2023.

Sri Pranjal Mehrotra, learned counsel appearing for respondent no.2 & 3-Electricity department states that no disconnection of electric supply shall be done till the next date of listing.

Order Date :- 23.12.2022

P.P.

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

As prayed, **put up as a fresh case** before the appropriate bench **on 13.01.2023.**

Interim order, if any, granted earlier is extended till the next date of fixed.

Order Date :- 6.1.2023

NLY

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

As prayed, **put up as a fresh case on 20.01.2023.**

Interim order, if any, granted earlier is extended till the next date of fixed.

Order Date :- 13.1.2023

NLY

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research
Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan
Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Put up as a fresh case on **28.01.2023** before the appropriate
Bench.

Interim order, if any, granted earlier, shall continue till the next
date fixed.

Order Date :- 20.1.2023

SK

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research
Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan
Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Put up as a fresh case before the appropriate Bench on
06.02.2023.

Interim order, if any, granted earlier, shall continue till the next
date fixed.

Order Date :- 28.1.2023

SK

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Put up as a fresh case before the appropriate bench **on 13.02.2023.**

Interim order, if any, granted earlier is extended till the next date of listing.

Order Date :- 6.2.2023/vkg

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Put up as a **fresh case** before the appropriate bench **on 20.02.2023.**

Interim order, if any, granted earlier is extended till the next date of listing.

Order Date :- 13.2.2023/vkg

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research
Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan
Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Put up as fresh case before the appropriate Bench on
27.02.2023.

Interim order, if any, granted earlier is extended till the next
date of listing.

Order Date :- 20.2.2023

Shubham Arya

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjali Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

As prayed, put up as a **fresh** case before the appropriate Bench on **14.03.2023**.

Interim order, if any, granted earlier is extended till the next date of listing.

Order Date :- 27.2.2023/vkg

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Heard Sri B.C. Rai, learned counsel for the petitioner, learned standing counsel for the respondent no.1 and Sri Pranjal Mehrotra, learned counsel for the respondent nos. 2 & 3.

This writ petition was presented on 10.11.2022. On 23.12.2022, this Court passed the following order:

"The petitioner states that he is not approaching the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005 as it was not manned by any judicial officer. All the judicial members had been removed and now it is being run by the Executive Engineer as a Chairman.

The impugned order dated 7.10.2022 has been passed by the Executive Engineer and learned counsel submits that the officer of an equal rank could not be expected to set it aside. Sri Pranjal Mehrotra, learned counsel appearing for respondent nos. 2 & 3-Electricity department may look into this aspect of the matter and submit a further report. Put up this case as fresh on 6.1.2023.

Sri Pranjal Mehrotra, learned counsel appearing for respondent no.2 & 3-Electricity department states that no disconnection of electric supply shall be done till the next date of listing. "

Today, Sri Pranjal Mehrotra, states on instruction of Sri Rohitas Singh Jangpangi, Executive Engineer, Electricity Distribution Division - II, Paschimanchal Vidyut Vitarn Nigam Ltd., Moradabad that one Sri Jagdeesh (Retired Judge) is the Chairman and one Sri Yogendra Singh (Executive Engineer attached with the office of the Chief Engineer, Moradabad) is technical member of Consumer Grievance Redressal Forum, Moradabad under Clause 7.10 of the U.P. Electricity Supply Code, 2005. The aforesaid instruction is kept on record.

Sri Pranjal Mehrotra, learned counsel for the respondent nos. 2 & 3 further states on the basis of the aforesaid instructions of the Executive Engineer that the Consumer Grievance Redressal Forum, Moradabad is functional and in consist of a judicial member and a Technical Member.

Sri B.C. Rai, learned counsel for the petitioner has produced before us status of Consumer Grievance Redressal Forum under, Paschimanchal Vidyut Vitarn Nigam Ltd. (Meerut Discom) downloaded from website which shows that post of Chairman/Judicial Member and Technical Member in Consumer Grievance Redressal Forum, Moradabad, is vacant.

In view of the aforesaid, we direct the petitioner to file a supplementary affidavit and we also direct the respondent no.3 to file his personal affidavit bringing on record the status of Consumer Grievance Redressal Forum, Moradabad. Both the affidavits shall be filed within a week from today.

Put up as a **fresh** case before the appropriate Bench on **22.03.2023** alongwith connected writ petition.

Interim order, if any, granted earlier is extended till the next date fixed.

Order Date :- 14.3.2023/vkg

Court No. - 3

Case :- WRIT - C No. - 34030 of 2022

Petitioner :- M/S Kothiwal Dental College And Research Centre Acting Through Its Manager Salil Kothiwal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- Pranjal Mehrotra

connected with

Case :- WRIT - C No. - 34036 of 2022

Petitioner :- M/S Kothiwal Institute Of Technology

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Manoj Kumar Sharma, Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Anish Kumar Gupta, J.

Since the controversy involved in both the writ petitions is identical, therefore, with the consent of learned counsel for the parties, both the petitions are being decided by this common order.

Heard Sri B.C. Rai along with Sri Manoj Kumar Sharma, learned counsel for the petitioner, Sri Virendra Kumar Gupta, learned Standing Counsel for respondent no.1 and Sri Pranjal Mehrotra, learned counsel for the respondents no. 2 and 3 in both the above petitions.

The above writ petitions have been filed praying to quash the order dated 07.10.2022 passed by the respondent no.3-Executive Engineer, Electricity Distribution Division-II, Paschimanchal Vidyut Vitran Nigam Ltd., Moradabad.

Pursuant to order dated 14.3.2023, passed in Writ C No. 34030 of 2022, the respondent no.3 has filed today his personal affidavit dated 19.3.2023 annexing therewith a chart dated 15.06.2022, as Annexure-1, in which at Sr. no. 10 it is mentioned that Chairman of Moradabad Consumer Grievance Redressal Forum is Sri Jagdish, who is stated to be a retired Additional District Judge. It is further stated in the affidavit that Electricity Consumer Grievance Redressal Forum, Moradabad is functional at present. In paragraphs 3, 5 and 6 of his personal affidavit, the respondent no.3 has stated as under:-

"3. That it is respectfully submitted that presently the Electricity Consumer Grievance Redressal Forum is functional at Moradabad, and details with regard to the same are available on the website www.pvvn.org.

As per the website, Shri Jagdish is the Chairman and Shri Yogendra Singh, Executive Engineer (attached) is the Member Licensee and the name of the

Member (Technical) is vacant.

*Copy of the details downloaded from the website www.pvvn.org is being filed herewith and marked as **Annexure No. 1** to this affidavit.*

5. That the answering respondents are bringing on record copies of the recent orders passed by the Electricity Consumer Grievance Redressal Forum, Moradabad, from a perusal whereof, it is apparent that Electricity Consumer Grievance Redressal Forum, Moradabad is fully functional at present.

*Copies of the recent orders passed by the Electricity Consumer Grievance Redressal Forum, Moradabad are being filed herewith as marked as **Annexure No. 2** to this affidavit.*

6. That in view of the facts and circumstances stated herein before, it is apparent that the petitioner has the remedy to approach the Electricity Consumer Grievance Redressal Forum, Moradabad under Clause 7.10 of the U.P. Electricity Supply Code, 2005, and therefore, the present writ petition is not maintainable, and the same is liable to be dismissed as such."

In view of the stand taken by the respondents as aforementioned, we **dispose of** the above writ petitions giving liberty to both the petitioners to file a complaint separately, before the Electricity Consumer Grievance Redressal Forum, Moradabad within four weeks from today along with a certified copy of this order and in the event, the petitioners submit such a complaint within stipulated period, it shall be decided by the Forum strictly in accordance with law, expeditiously after affording reasonable opportunity of hearing to the parties.

Liberty is also granted to the petitioners to move a stay application before the Forum along with the complaint, which shall be decided within two weeks from the date of its filing.

For a period of six weeks or till the order on stay application of the petitioners is passed by the Forum, whichever is earlier, no coercive action shall be taken against the petitioners pursuant to the impugned order.

Order Date :- 22.3.2023

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